***NON-DISCLOSURE AGREEMENT***

*This Non-Disclosure Agreement ("Agreement") is entered into as of July 8, 2025 ("Effective Date") between:*

***ABC GmbH**, a company organized under the laws of the Federal Republic of Germany, with its registered office at ABC-strasse 42, 80339 Munich, Germany ("ABC"), and*

***Crawford Ried Engineering Inc.**, a company organized under the laws of the State of Illinois, United States, with its principal place of business at 200 West Adams Street, Suite 1500, Chicago, IL 60606, USA ("Counterparty"),*

*each a "Party" and collectively the "Parties."*

***1. Purpose.***

*The Parties wish to exchange confidential information for the purpose of evaluating a potential collaboration on infrastructure engineering projects (the "Purpose").*

***2. Confidential Information.***

*"Confidential Information" means any and all information, data, documents, know-how, trade secrets, business plans, financial information, technical specifications, and any other proprietary information disclosed by one Party (the "Disclosing Party") to the other (the "Receiving Party") in connection with the Purpose, regardless of the form or manner of disclosure and whether or not marked as confidential.*

***3. Exceptions.***

*Confidential Information does not include information that the Receiving Party can demonstrate by clear and convincing evidence: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was already in the Receiving Party's possession prior to disclosure; (c) is received from a third party who is not under a confidentiality obligation to the Disclosing Party and who has the right to make such disclosure; or (d) is independently developed by the Receiving Party without use of or reference to the*

***4. Obligations.***

*The Receiving Party shall protect Confidential Information using at least the same degree of care it uses for its own confidential information, but no less than reasonable care. The Receiving Party shall use Confidential Information solely for the Purpose.*

***5. Permitted Recipients.***

*The Receiving Party may disclose Confidential Information to its employees and affiliates on a need-to-know basis, provided they are bound by written confidentiality obligations no less restrictive than those in this Agreement. Disclosure to external agents, advisors, contractors, or other third parties requires the prior written consent of the Disclosing Party, which consent shall not be unreasonably withheld or delayed.*

***6. Compelled Disclosure.***

*If the Receiving Party is compelled by law, regulation, or legal process to disclose Confidential Information, it shall provide the Disclosing Party with prompt written notice prior to such disclosure to the extent legally permitted, and shall cooperate to limit the scope of such disclosure.*

***7. No Warranty.***

*All Confidential Information is provided "AS IS." The Disclosing Party makes no warranty as to its accuracy, completeness, or fitness for any purpose. Neither Party shall be liable for any damages arising from the other Party's use of or reliance on the Confidential Information.*

***8. Intellectual Property.***

*Nothing in this Agreement grants either Party any license, right, or interest in the other Party's intellectual property, patents, copyrights, trade secrets, or know-how. Disclosure does not constitute a transfer of ownership. Any analyses, compilations, studies, or other derivative materials prepared by the Receiving Party that contain or are based upon Confidential Information shall be treated as Confidential Information of the Disclosing Party for the purposes of this Agreement, but no assignment of intellectual property rights in such derivative materials shall be implied.*

***9. Return or Destruction.***

*Upon written request or termination of this Agreement, the Receiving Party shall within thirty (30) days return or destroy all Confidential Information, including all copies, notes, summaries, and analyses, and shall provide written certification of such return or destruction signed by a senior officer. The Receiving Party may retain copies solely to the extent required by applicable law or regulation, provided that any such retained copies remain subject to the obligations of this Agreement for the duration of their retention.*

***10. Term and Confidentiality Period.***

*This Agreement shall remain in effect for a period of two (2) years from the Effective Date, unless terminated earlier by either Party upon thirty (30) days' written notice. The confidentiality obligations shall survive for a period of three (3) years from the date of each individual disclosure.*

***11. Contractual Penalty.***

*In the event of a material breach of this Agreement that is proven by the non-breaching Party, the breaching Party shall pay to the non-breaching Party a contractual penalty of USD 50,000 (fifty thousand US dollars) per proven breach, up to a maximum aggregate amount of USD 150,000 (one hundred fifty thousand US dollars). Payment of the contractual penalty shall constitute the sole and exclusive monetary remedy for such breach, without prejudice to the non-breaching Party's right to seek injunctive or equitable relief.*

***12. Liability.***

*Each Party's liability for any breach of this Agreement shall be limited to direct damages actually incurred by the non-breaching Party, up to a maximum aggregate amount of USD 500,000 (five hundred thousand US dollars). Neither Party shall be liable for indirect, incidental, special, or consequential damages, regardless of whether such damages were foreseeable. This limitation applies equally to both Parties.*

***13. Non-Solicitation.***

*During the term of this Agreement and for a period of twelve (12) months following its termination or expiration, neither Party shall directly solicit for employment any employee of the other Party who was personally involved in the exchange of Confidential Information under this Agreement. This restriction does not apply to: (a) general recruitment advertising or job postings; (b) any employee who responds to such advertising without direct solicitation; or (c) any employee who independently approaches the other Party seeking employment. No contractual penalty shall apply for breach of this clause.*

***14. Governing Law.***

*This Agreement shall be governed by and construed in accordance with the laws of England and Wales, without regard to its conflict of laws principles.*

***15. Dispute Resolution.***

*Any dispute arising out of or in connection with this Agreement shall be subject to the exclusive jurisdiction of the courts of London, England. All court proceedings and filings related to disputes under this Agreement shall be treated as confidential to the extent permitted by applicable law and court rules. Nothing in this clause prevents either Party from seeking injunctive or other equitable relief from any court of competent jurisdiction.*

***16. General.***

*This Agreement constitutes the entire agreement between the Parties regarding the subject matter hereof. Amendments must be in writing and signed by both Parties. This Agreement may be executed in counterparts.*

***IN WITNESS WHEREOF**, the Parties have caused this Agreement to be executed by their duly authorized representatives.*

| **ABC GmbH** | **Crawford Ried Engineering Inc.** |
|---|---|
| Name: _____ | Name: _____ |
| Title: _____ | Title: _____ |
| Signature: _____ | Signature: _____ |
| Date: _____ | Date: _____ |